

bringing up the issue of UCC without addressing the above question is problematic.

COLIN GONSALVES: Those who say it is against diversity are of course right—the diversity in forms of discrimination against women! There are many ways women are discriminated against in India. The constitutionally required UCC seeks to do away with all these. Is it against diversity of practices? Certainly not. The UCC is not going to affect the rituals and customs of marriage and death unique to every religion. Whichever practice is not discriminatory will remain. We can't have personal laws hampering society. The time has come for a uniform, secular law. At the same time, we must not let the BJP lead this UCC debate and turn this social need for change into a political tool for its electoral gains. It will be a travesty of justice as the BJP is no believer in equality—for them, it's just an electoral plank. The people, civil society groups and all other parties must take this opportunity to push for a genuine UCC. The debate must start by asking the BJP to make its views public about HUF.

SAUMYA SAXENA: Yes, absolutely, the UCC is against plurality. It was potentially imagined as an optional code—that now exists in the form of the Special Marriage Act and other such laws. There are many ways to address discrimination without creating a uniform code. It can be achieved by codifying or amending personal law, individually addressing problematic customary laws and practices, be it triple talaq, levirate marriages or *maitri karar*. UCC is not the only solution.

FLAVIA AGNES: The BJP is using the UCC as an electoral plank and as a divisive tool to increase hatred towards Muslims. The prime minister's call for a UCC was very communal: it only targeted the Muslim community by saying they had remained backward because of the absence of a UCC. If the government is sincere, it should go back to the 21st Law Commission report and bring in reforms within personal laws to make them gender-just. The report has several pointers on weeding out discrimination without imposing a UCC. It talked about the uniformity of rights, not laws. The Commission's consultation paper even emphasised that celebration of diversity must not disadvantage specific groups and "women must be guaranteed their freedom of faith without any compromise on their right to equality". It recommended a series of reforms in the personal laws of all religions as well as secular laws that place women and children at a disadvantage. Its most significant recommendations were about the economic rights of women. The government has had a blueprint before it for five years but unfortunately has done nothing. It should just follow that blueprint.

"The BJP-RSS are using the UCC rhetoric to target Muslims and tell the Hindus that Muslims have been shown their place"
–ASADUDDIN OWAISI

ASADUDDIN OWAISI: The BJP and the RSS are using the UCC rhetoric to target Muslims and tell the Hindus that Muslims have been shown their place. If the UCC is so good, why don't BJP leaders announce that if it comes, all Hindu laws will also go away? Why don't they talk about tribals who enjoy constitutional protection? If tribals are excluded, how will it remain uniform? Even in the Special Marriage Act, there are exceptions available to Hindus, not enjoyed by others. Will the so-called UCC draft retain the Hindu-specific exemptions or remove them? Will the tax exemption given to the Hindu Undivided Family go or stay? Several tribes practise polygamy and polyandry. Will that be removed? Let the prime minister go to Chhattisgarh, MP and Rajasthan, hold a big rally in the tribal areas, and say the government will bring in UCC to replace their 'archaic' customs. Can he? ■